

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
AARON STROMAN,

Plaintiff,

-against-

Police Officer TONY CUOCO (Shield No. 17359), in
his individual capacity; Detective DAVID
QUATTROCCHI (Shield No. 15010), in his individual
capacity; and Sergeant ROBERT MARTINEZ (Tax
ID 922716), in his individual capacity,

Defendants.
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VERIFIED COMPLAINT

Index No.:

Plaintiff AARON STROMAN, by and through his attorneys, Bernstein Clarke & Moskovitz PLLC, alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff Aaron Stroman brings this civil-rights action because his constitutional and civil rights were violated when Defendants, New York City Police Department officers, arrested him without probable cause and falsely charged with him committing crimes that he had not committed.

2. Mr. Stroman brings this suit to vindicate his civil and constitutional rights and to hold the officers accountable for their actions. He seeks, among other things, compensatory damages for his injuries and for the loss of his freedom and punitive damages to ensure that the officers' misconduct is punished and will not happen again.

JURISDICTION AND VENUE

3. This action is brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's civil rights secured by the Fourth and Fourteenth Amendments to the United States Constitution.

4. The amount of damages sought exceeds the jurisdiction of all lower courts that otherwise would have jurisdiction.

5. Venue is proper in Kings County pursuant to C.P.L.R. § 503 as this is an action against the City of New York and its officers, and Kings County is where the events giving rise to this action took place.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action on each of his claims for which jury trial is legally available.

THE PARTIES

7. Plaintiff AARON STROMAN is a citizen of the United States and of the State of New York.

8. At all times relevant to this complaint, plaintiff was a resident of Kings County, New York.

9. Upon information and belief, at all relevant times, defendants Police Officer TONY CUOCO (Shield No. 17359), Detective DAVID QUATTROCCHI (Shield No. 15010), and Sergeant ROBERT MARTINEZ (Tax ID 922716), were and are citizens of the United States and the State of New York.

10. At all relevant times, the defendants were employed by the City of New York (“the City”) and the New York City Police Department (“NYPD”). The City is a municipal entity created and authorized under the laws of the State of New York. The City is authorized by law to maintain, manage, supervise, and control a police department, and does maintain the NYPD. The NYPD is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the governing law, rules, and regulations of the City.

11. Upon information and belief, on January 9, 2016, defendant Quattrocchi was an NYPD Police Officer and therefore, he is referred to herein as “Officer Quattrocchi.”

12. At all relevant times, the defendants acted under color of law in the course and scope of their duties and authority as officers, agents, servants, and employees of the NYPD and the City.

13. At all relevant times, the defendants violated plaintiff’s clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution, of which reasonable law enforcement officers in their respective circumstances would have known.

STATEMENT OF FACTS

14. The morning of January 9, 2016, Aaron Stroman was traveling on the public streets and was not committing and had not committed any criminal offense or violation.

15. Around or approximately 5:00 a.m., Officers Cuoco and Quattrocchi stopped and seized Mr. Stroman, pointed their guns at him, and forced him to lie on the ground.

16. Sergeant Martinez arrived and indicated that he knew Mr. Stroman.

17. Mr. Stroman previously sued Sergeant Martinez for violating his civil and constitutional rights.

18. Mr. Stroman was placed under arrest even though there was not probable cause he had committed any offense.

19. Upon information and belief, Sergeant Martinez ordered or was aware that Mr. Stroman’s was being placed under arrest absent probable cause.

20. Mr. Stroman was transported to the 75th Precinct.

21. Officer Quattrocchi provided false information to the District Attorney’s Office to justify Mr. Stroman’s arrest.

22. This false information included that Mr. Stroman had fled from the police, rode a

bicycle on a public sidewalk at a high rate of speed causing pedestrians to jump out of the way to avoid being struck, and rode a bicycle on a public highway in the wrong direction of traffic.

23. Officer Quattrocchi provided further false information to the District Attorney's Office, *viz.*, that Officer Cuoco had observed Mr. Stroman throw an air pistol while Officer Cuoco was pursuing Mr. Stroman.

24. Officers Quattrocchi and Cuoco caused false criminal charges to be brought against Mr. Stroman.

25. As a result of the false allegations provided to the District Attorney's Office, Mr. Stroman was charged in Kings County Criminal Court under Docket No. 2016KN001525 with several offenses, including riding a bicycle where prohibited, operating a bicycle on the sidewalk, possessing an air pistol, and disorderly conduct.

26. The criminal complaint charging Mr. Stroman with these offenses was signed under oath by Officer Quattrocchi.

27. The criminal complaint included the same false allegations as detailed above that Officer Quattrocchi provided to the District Attorney's Office.

28. As a result of the criminal charges being brought against him, Mr. Stroman was required to appear in court numerous times until July 2017.

29. The criminal charges against Mr. Stroman were finally dismissed on January 18, 2018.

30. As a result of the false allegations and charges against him, Mr. Stroman was subjected to an extended period of supervision in a separate criminal case. Mr. Stroman's freedom was limited during that period of extended supervision.

31. As a result of the foregoing, Plaintiff suffered among other things, the loss of his freedom, fear, and the deprivation of his constitutional rights.

CAUSE OF ACTION**42 U.S.C. § 1983 – Violations of the Fourth and Fourteenth Amendments**

32. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

33. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law to deprive plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including but not limited to:

- a. the right to be free from unreasonable search and seizure of his person;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- d. the right to be free from deprivation of liberty without due process of law; and
- e. the right to a fair trial.

34. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

35. As a direct and proximate result of the individual defendants' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

36. The unlawful conduct of the individual defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

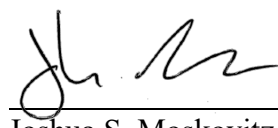
DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorney's fees;
- (D) the costs and disbursements of this action;
- (E) interest; and
- (F) such other and further relief as appears just and proper.

Dated: New York, New York
January 8, 2019

BERNSTEIN CLARKE & MOSKOVITZ PLLC
11 Park Place, Suite 914
New York, New York 10007
(212) 321-0087

By: 

Joshua S. Moskowitz

Colin Reeves

Attorneys for Plaintiff Aaron Stroman

VERIFICATION

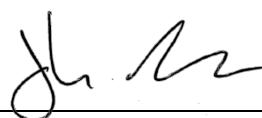
STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

JOSHUA S. MOSKOVITZ, being duly sworn, deposes and says:

I am an attorney for the plaintiff in the within action and my office is located at 11 Park Place, New York, New York 10007, which is within the County of New York. This verification is made by me because the plaintiff is not within the County of New York, which is the county where I have my office.

I have read the foregoing Verified Complaint and know its contents. The factual allegations are made upon information and belief, and are based on my inquiries, the contents of our files, and discussions I have had with plaintiff and others. The Complaint is true to my knowledge, except as to matters alleged on information and belief, and as to those matters, I believe them to be true.

Dated: January 8, 2019



JOSHUA S. MOSKOVITZ